
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 14-0361
Mental Health Counselor License of	)	
MICHELLE JOHNSON	)	SETTLEMENT AGREEMENT
License No. 001060	)	AND FINAL ORDER
Respondent.	)	

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4) (2015), and 645 IAC 12, the Iowa Board of Behavioral Science ("Board") and Michelle Johnson ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on August 13, 2015.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
9. This Order shall not be binding as to any new complaints received by the Board.

10. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

13. Respondent agrees to **VOLUNTARILY SURRENDER** her license to practice as a mental health counselor to resolve this matter. This voluntary surrender is considered discipline and, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5). Respondent shall surrender her mental health counselor license to the Board immediately upon the Board's approval of this Order.

14. Respondent agrees not to use any words or titles which imply or represent that she is a licensed mental health counselor, or to otherwise hold herself out to the public as a licensed mental health counselor, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa.

15. Respondent may not request reinstatement for at least one year from the date of this Order. Respondent may request reinstatement by filing an application for reinstatement under 645 IAC 11.31 and 31.17. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for revocation of her license no longer exists, and that it is in the public interest for the license to be reinstated.

16. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 05 day of January, 2016.

Michelle T. Johnson

MICHELLE JOHNSON
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Behavioral Science on the 4th day of February, 2016.


Vice-Chairperson
Iowa Board of Behavioral Science

Copies to:

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